

23STCV22387 23STCV22387

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Case Number: 23STCV22387 Hearing Date: August 26, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 08/26/2026

CASE NUMBER: 23STCV22387

CASE NAME: DOUGLAS J. DENOCE, AN

INDIV... vs WATERGATE PROPERTY OWNERS A...

MOVING PARTY: Defendants WATERGATE PROPERTY

OWNERS ASSOCIATION, INC., and S.H. CHAVIN, INC., D/B/A COMMUNITY PROPERTY

MANAGEMENT

OPPOSING PARTY: Plaintiff Douglas J. DeNoce as an

individual and trustee of Savannah N. DeNoce Trust

PROCEEDING: Demurrer with Motion to Strike

RULING SUMMARY: Defendants Watergate Property Owners

Association, Inc. and S.H. Chavin, Inc., D/B/A Community Property Management's

Demurrer is sustained.

Defendants Watergate Property Owners

Association, Inc. and S.H. Chavin, Inc., D/B/A Community Property Management's

Motion to Strike is granted.

Leave to amend is

denied.

Background

On September 18, 2023, plaintiff Douglas

J. DeNoce, as an individual and Trustee of the Savannah

N. DeNoce Trust ("DeNoce"), filed a Complaint against Watergate

Property Owners Association, Inc. ("Watergate"); S.H. Chavin, Inc. dba

Community Property Management ("CPM" and collectively "Defendants"); and Does 1

to 25, alleging two causes of action – (1) private nuisance and (2) public

nuisance.

Plaintiff filed the First Amended Complaint

("FAC") on December 29, 2023, before a hearing on a Motion to Strike, in which

Plaintiff alleged the same two causes of action. On March 6, 2024, the Court

granted Defendants'

Motion to Strike

Punitive Damages with leave to amend. On

March 27, 2024, Plaintiff filed the Second Amended Complaint ("SAC") alleging

the same two causes of action, and on June 24, 2024, the Court again granted Defendants' Motion to Strike Punitive Damages with

leave to amend.

On April 23, 2024, the Watergate filed in case

number 24VEVC01848 a Complaint against DeNoce and Does 1 to 20.

On July 24, 2024, Plaintiff filed the Third

Amended Complaint ("TAC") alleging the same two causes of action as in his previously

filed complaint and amended complaints. On January 16, 2025, the Court again granted Defendants' Motion to Strike Punitive Damages with

leave to amend.

The cases were related within the meaning

of California Rules of Court, Rule 3.300(a) on May 15, 2024 with this case designated

the lead case.

On February 6, 2025, Plaintiff filed the Fourth

Amended Complaint ("4AC") alleging the same two causes of action. On July 7,

2026, the Court overruled Defendants' Demurrer as to the First Cause of Action

(Private Nuisance) and sustained Defendants' Demurrer as to the Second Cause of Action (Public

Nuisance) with leave to amend.

The

current pleading in this action is Plaintiff's Fifth Amended Complaint ("5AC")

filed on July 28, 2025. It pleads two causes of action: Private Nuisance, and

Public Nuisance. On September 25, 2025, Defendants filed this Demurrer with Motion to Strike.

On

November 18, 2025, counsel for DeNoce, Joseph R. Ashby, filed a Motion to be

Relieved as Counsel, which was granted on January 7, 2026. On January 12, 2026, DeNoce filed a Motion

for Reconsideration of the order granting Joseph R. Ashby's Motion to be

Relieved; the motion was denied.

On

April 22, 2026, DeNoce filed an Ex Parte Application seeking a continuance of

the hearing on the Demurrer and Motion to Strike, to give him time to retain replacement

counsel. The Ex Parte Application was granted, and the hearing on the Demurrer

with Motion to Strike was continued to August 26, 2026. The Court explicitly

stated in its ruling that "[n]o further continuances requested by the plaintiff

shall be granted.

On

August 3, 2026, DeNoce filed an Ex Parte Application requesting a continuance

for the second time. The Court denied the Ex Parte Application on August 4,

2026.

On

August 14, 2026, DeNoce filed his Opposition to the Demurrer with Motion to

Strike. On August 19, 2026, Defendants filed their Replies.

Demurrer with

motion to Strike

MEET AND CONFER REQUIREMENT

Before filing a demurrer or motion

to strike, the moving party is required to meet and confer with the party who

filed the pleading demurred to, in person or telephonically, to determine

whether an agreement can be reached through a filing of an amended pleading

that would resolve the objections to be raised in the demurrer. (Code Civ.

Proc. §§ 430.41, 435.5.)

This requirement has been met.

(See Decl. Zihad Amin attached to respective motions ¶¶ 3-7.)

LEGAL

STANDARD

A.

Demurrer

A demurrer is an objection to a pleading,

the grounds for which are apparent from either the face of the complaint or a

matter of which the court may take judicial notice. (Code Civ. Proc. § 430.30(a);

Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) “To survive a demurrer, the

complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged.” (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer “does not admit contentions, deductions or conclusions of fact or law.” (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

B.

Motion to Strike

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc. § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc. § 436(a)-(b); Stafford v. Shultz (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be

stricken out or disregarded”].)

C.

Leave to Amend

“Where the defect raised by a motion to

strike or by demurrer is reasonably capable of cure, leave to amend is

routinely and liberally granted to give the plaintiff a chance to cure the

defect in question.” (CLD Construction, Inc. v. City of San Ramon, (2004)

120 Cal.App.4th 1141, 1146.) “A trial court does not abuse its discretion when

it sustains a demurrer without leave to amend if either (a) the facts and the

nature of the claims are clear and no liability exists, or (b) it is probable

from the nature of the defects and previous unsuccessful attempts to plead that

the plaintiff cannot state a claim.” (Cantu v. Resolution Trust Corp., (1992) 4

Cal.App.4th 857, 889.) The burden is on the complainant to show the Court

that a pleading can be amended successfully. (Goodman v. Kennedy, (1976)

18 Cal.3d 335, 348.)

JUDICIAL

NOTICE

DeNoce asks

the Court to take judicial notice of the Ru1ing of July 7, 2025 on Defendants’

Demurrer and Motion to Strike the Fourth Amended Complaint; the request is

granted.

DISCUSSION

DeNoce's

Further Request for a Continuance of the Hearing. As an initial matter, DeNoce again seeks

a continuance, claiming that he "still does not have his full files returned

from his former attorney" and contending that such files are needed to select

new counsel and prepare an opposition. In accordance with the Court's prior ruling

that no further continuances requested by DeNoce will be granted and further

finding based on the totality of the circumstances that DeNoce has not shown

good cause for a further continuance, the request is denied. DeNoce has not been prevented from filing an

opposition to the Demurrer with Motion to Strike; moreover, any attorney, by

accessing documents on the Court's website, could have filed an opposition on

his behalf had he retained one.

Defendants'

Request to Strike Plaintiff's Opposition.

Defendants ask the Court to strike the Oppositions to the Demurrer

and the Motion to Strike, on the ground that DeNoce represent the trust in pro

per as he is not an attorney.

The

Court grants Defendants' request to strike the Opposition as it applies to DeNoce

as Trustee of the of the

Savannah N. DeNoce Trust. In

Ziegler v. Nickel (1998) 64 Cal.App.4th 545, 549, the Court held:

[A] trustee's duties in connection with

his or her office do not include the right to present argument in courts of the

state, because in this capacity such trustee would be representing interests of

others and would therefore be engaged in the unauthorized practice of law.

Stated otherwise, '[a] trustee must always act solely in the beneficiaries'

interest. The actions of the trustee affect the trust estate and therefore

affect the interest of the beneficiaries. A nonattorney trustee who represents

the trust in court is representing and affecting the interests of the

beneficiary and is thus engaged in the unauthorized practice of law.

The

Oppositions filed by DeNoce as Trustee of the Savannah N. DeNoce Trust are

stricken. The Court does not strike the Oppositions as they apply to DeNoce as

an individual. Hereafter in this Ruling,

unless specified otherwise, "DeNoce" refers to DeNoce in his individual

capacity.

A.

Demurrer

Defendants

demur to the Second Cause of Action (Public Nuisance) only, arguing that DeNoce has failed to plead a public nuisance because the harm described in the 5AC is limited only to DeNoce's individual townhouse. Defendants note that DeNoce has now added allegations that three other units border the same parking lot, and that "on information and belief" there are other units similarly situated to his, but they argue that this is far from the "considerable number of persons" or community-wide impact required by *Birke v. Oakwood Worldwide* (2009) 169 Cal.App.4th 1540 ("Birke"). Defendants also cite *Mendez v. Rancho La Costa* (1980) 111 Cal.App.3d 379 ("Mendez") and *People v. Air France* (1976) 64 Cal.App.3d 383 ("Air France") to support the argument that localized noise from a single source, like the parking strip in this action, is deemed private, not public.

Defendants

further contend that DeNoce's claims regarding the other units are conclusory as they are based on speculation and DeNoce fails to plead injury that extends beyond his own personal harm, as required for a public nuisance claim.

DeNoce argues

that he has alleged in paragraph 28 of the 5AC that there are approximately 20 other townhouses in the Watergate Community that are affected, and that another

resident, Dana Knudsen, previously submitted a complaint to Watergate, which he

attached as Exhibit N to the 5AC, and that these allegations show that a

significant portion of the community is affected so that the alleged nuisance

may proceed as a public nuisance claim. DeNoce

cites *Wade v. Campbell* (1962) 200 Cal.App.2d 54 (“Campbell”) and *People*

v. Mason (1981) 124 Cal.App.3d 348 (“Mason”) to support his contention

that, where 20 homes are affected, a public nuisance cause of action may be

alleged. He contends that he has pled

all elements for a public nuisance claim.

In

Reply, Defendants argue that DeNoce fails to include any addresses or locations

for the “approximately 20” units to which DeNoce, that the three he highlighted

in the Opposition are not alleged to be adjacent to the parking strip, and none

of the units mentioned are alleged to have made complaints about the parking

strip. According to Defendants, DeNoce also distinguishes his unit from other

units due to a “front door parking strip.” They contend that the cases DeNoce cited are distinguishable

because all identified plaintiffs in those cases complained of the same alleged

nuisance.

The

allegations in the 5AC regarding alleged nuisance are as follows:

.

“ . . . The Watergate Community was built as part of a single development, and on information and belief, all of the townhouses were constructed in substantially the same manner and with substantially the same materials. Based on the townhouses having been constructed in substantially the same manner, on information and belief, the townhouses all have comparable levels of sound and vibration transference. Therefore, on information and belief, each unit in the complex that is a comparable distance from a parking strip as Mr. DeNoce's townhouse is from the two parking strips discussed below would experience a level of sound and vibration intrusion that constitutes a nuisance under the Westlake Village Noise Ordinance. There are three other townhouses in the Watergate Community with walls that abut a parking strip (similar to the Bedroom Wall Parking Strip discussed below), and on information and belief, each of those units experience noise and vibration transference that is similar to the noise and vibration transference which Mr. DeNoce's townhouse experiences from the Bedroom Wall Parking Strip in violation of the Westlake Village Noise Ordinance.” (5AC ¶ 2.)

.

“In November 2017, before Ms. Knudsen was a director, she complained to the then Watergate Board about the “Parking

Nuisances.” (Exhibit N). Ms. Knudsen has parking strips around her townhouse very similarly to the parking strips around Mr. DeNoce’s home. Ms. Knudsen’s complaint to the Watergate Board shows that the parking nuisance exists throughout the Watergate Community because Ms. Knudsen’s townhouse is at the opposite end of the Watergate Community from Mr. DeNoce’s townhouse.” (Id.

¶ 23.)

.
In addition to Mr. DeNoce’s townhouse and Ms. Knudsen’s townhouse, there are a number of other townhouses in the Watergate Community effected [sic] by the parking nuisance. These townhouses represent a cross-section of the entire Watergate Community and are a sampling located at each end of the Watergate Community. The other townhouses include: [¶] (a) 32118 Watergate Road, owned by Meir and Linda Trust. This townhouse and its residents experience the same increased unabated noise and vibration activity as described herein. [¶] (b) 4098 Lake Harbor Lane, owned by the Raffelsons. This townhouse and its residents experience the same increased unabated noise and vibration activity as described herein. [¶] There are many other units in Watergate that suffer from noise and vibration intrusion due to the increased and unabated parking activity as described herein which discovery and investigation will establish. Defendants have impeded and not been

forthcoming in discovery . . .” (Id. ¶ 24.)

.

Defendants and Defendant Does 1 to 25 because of

their wrongful acts and/or omissions, allowed and contributed to a condition

that has affected many people within the Watergate Community, including Mr.

DeNoce's townhouse, from an array of noise disturbances or noise intrusions

permeating townhomes where persons live and raise their families. (Id. ¶

82.)

Damages regarding the public

nuisance are alleged as follows:

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“As a direct and legal result of Defendants' and

Defendant Does 1 to 25's wrongful acts and/or omissions, Mr. DeNoce suffered

harm different from the type of harm suffered by the general public.

Specifically, Mr. DeNoce lost use, and/or enjoyment of their land, real

property, and/or personal property. As a direct and legal result of Defendants'

wrongful acts and/or omissions, Mr. DeNoce suffered and continues to suffer

damages as described above and in an amount according to proof at trial.” (Id.

¶ 87.)

.

“As a direct and legal result of the conduct of

Defendants and Defendant Does 1 to 25, and each of them, Mr. DeNoce was hurt

and injured in his health, strength, and activity, sustaining injury to Mr.

DeNoce's body, and shock and injury to Mr. DeNoce's nervous system and person,

all of which said injuries have caused and continue to cause Mr. DeNoce great

mental, physical and nervous strain, pain and suffering. Mr. DeNoce is informed

and believe, and thereon allege, that Mr. DeNoce will thereby continue to suffer

from his injuries, all to Mr. DeNoce general damage in an amount according to

proof.”

Civil Code

section 3479 defines nuisance as “[a]nything which is injurious to health, including

. . . indecent or offensive to the senses, or an obstruction to the free use of

property, so as to interfere with the comfortable enjoyment of life or

property, or unlawfully obstructs the free passage or use[.]” And section 3480

of the civil Code provides: “A public

nuisance is one which affects at the same time an entire community or

neighborhood, or any considerable number of persons, although the extent of the

annoyance or damage inflicted upon individuals may be unequal.”

Both

parties cite the Birke case as authority for the elements a plaintiff

must allege to plead a claim for public nuisance:

1.

The necessary elements for public nuisance are:

(1) the defendant, by acting or failing to act, created a condition that was
(a) harmful to health or (b) obstructed the free use of the property so as to
interfere with the comfortable enjoyment of life or property; (2) the condition
affected a substantial number of people at the same time; (3) an ordinary
person would be reasonably annoyed or disturbed by the condition; (4) the
seriousness of the harm outweighs the social utility of the conduct; (5) the plaintiff
did not consent to the conduct; (6) the plaintiff suffered harm that was
different from the type of harm suffered by the general public; and (7) the
defendant's conduct was a substantial factor in causing plaintiff's harm (Birke,
supra, 169 Cal.App.4th at 1548); and

2.

The general common law governing private

nuisance is "[w]here the nuisance alleged is not also a private nuisance as to
a private individual [that is, where there is no allegation of an interference
with a known property right] he does not have a cause of action on account of a
public nuisance unless he alleges facts showing special injury to himself in
person or property of a character different in kind from that suffered by the

general public,” but this holding does not abate a public nuisance by a private individual who has suffered personal injuries as a result of the challenged condition and “when the nuisance is a private as well as a public one, there is no requirement the plaintiff suffer damage different in kind from that suffered by the general public” (Id. at 1549-50.)

The circumstances

and allegations in the cases DeNoce cited to support his argument that his allegations are sufficient to plead a claim for public nuisance are distinguishable.

In *Wade*, multiple plaintiffs sued, and the Court held that dust, breeding of dairy cattle, and having hogs constitute a public nuisance. (*Wade*, *supra*, 200 Cal.App.2d at 55, 58-59.) In *Mason*,

supra, 124 Cal.App.3d at 352-53, the Court held that the evidence was sufficient to support the finding that a public nuisance was created due to the testimony of “11 people who owned 12 1/2 lots in a 51-lot tract,” which constituted a considerable number of persons in the neighborhood.

The 5AC

lacks factual allegations to support the conclusory allegations that nuisance affected a large amount of people at the same time. Though DeNoce has tried to amend the pleadings to include further allegations that show others are

impacted, the only damages pled are those suffered by DeNoce, not the public. DeNoce wants the Court to impute Knudsen’s

complaint and his own to the whole Watergate Community. But Knudsen's complaint, as attached as Exhibit N to the 5ACC, refers only to "parking nuisances" generally. (5AC, Exh. N.) While another sentence reads, "Yolanda to request details[.]" no details in the exhibit. The allegations do not allow a reasonable inference that Knudsen's complaint is the same as DeNoce's current complaint, as alleged in the 5AC.

The

allegations do not support an inference that "the townhouses all have comparable levels of sound and vibration transference" or that even the three units pointed out by DeNoce all have the same noise and vibration issue that DeNoce's townhouse allegedly experiences. (5AC ¶ 2.) Without more, such an allegation is conclusory; demurrers do not admit contentions, deductions, or conclusions of fact or law alleged in the challenged pleading. (Blank v. Kirwan, supra, 39 Cal.3d at 318.)

Because

the 5AC lacks sufficient allegation of a substantial number of people affected at the same time as DeNoce, the Defendants' Demurrer to the Second Cause of Action brought by DeNoce as an individual is sustained.

The Demurrer

to the Second Cause of Action brought by DeNoce as a trustee is also sustained, due to lack of an opposition.

Leave

to amend is not granted. DeNoce has

attempted to plead a claim for public nuisance six times and it is probable

from the nature of the defects and previous unsuccessful attempts to plead that

he cannot state such a claim.

B.

Motion to Strike

Defendants seek to strike punitive

damages as found in:

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Page 33, Paragraph 89, request for punitive and

exemplary damages;

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Page 33, Paragraph f., prayer for punitive

damages; and

.

Page 33, Paragraph h., prayer for exemplary

damages.

Defendants argue that DeNoce has

failed to allege malice, oppression, or fraud as the 5AC (1) fails to

plead specific facts as to how each of the defendants encouraged or contributed to the nuisance; (2) uses conclusory buzzwords for “malice, oppression, and fraud” only; and (3) fails to plead the requirements for corporate entities under Civil Code section 3294.

DeNoce argues that the moving papers are directed only at the Second Cause of Action (Public Nuisance) and, as such, punitive damages are still allowed as to the First Cause of Action (Private Nuisance). DeNoce contends that he has sufficiently alleged the ultimate facts to support a prayer of damages through Board members and managing agents, including Theodore Corwin (President), Dana Knudsen (Vice President), Michael Lawler (Director), Tina Daniels (Director), Don Hoffman (Director), and Linda Tonkins (Director), and that the alleged facts show that DeNoce made these individuals aware of his health issues and no action was taken; that Defendants retaliated, encouraged, and increased the alleged nuisance; and that malice, oppression, and fraud have been alleged.

To state a claim for punitive damages under section 3294 of the Civil Code, a plaintiff must allege specific facts showing that the defendant has been guilty of malice, oppression or fraud. (Smith v. Superior Court (1992) 10 Cal. App. 4th 1033, 1042.) The basis for punitive damages must be pled with specificity; conclusory

allegations devoid of any factual assertions are insufficient. (Ibid.)

“Malice” is defined in section 3294 (c)(1) as “conduct which is intended by the defendant to cause injury” or “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” “Oppression” is defined as “despicable conduct subjecting a person to cruel and unjust hardship in conscious disregard of that person’s rights.”

(Civ. Code § 3294(c)(2).) The term “despicable” has been defined in the case law as actions that are “base,” “vile,” or “contemptible.” (Shade Foods, Inc. v. Innovative Products Sales & Marketing, Inc. (2000) 78

Cal.App.4th 847, 891.) Fraud means “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Id. § 3294(c)(3).) With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation. (Id., subd. (b).)

The Court previously ruled, in pertinent

part:

Here, the additional facts from the 4AC state that Plaintiff

informed the Defendants of his stroke and provided a letter from his doctor to the Board documenting his condition. (4AC ¶ 33). The 4AC also includes emails sent after the stroke in which Plaintiff notified Defendants of the ongoing nuisance, yet it remained unabated. (4AC, Exs. C, D, F, G.) Moreover, Plaintiff alleges that Defendants embarked on a campaign to worsen the nuisance due to their “disdain and antipathy” towards him, and they instructed other residents to park in those parking spaces when closer parking spaces were available to their homes. (4AC ¶¶

33-34.) Further, the 4AC alleges that Defendants “knowingly, deliberately, and intentionally not only refused to abate the nuisance but have actively encouraged parking activity to increase the nuisance that has exacerbated the nuisance and worsened the impacts on [Plaintiff]’s health.” (4AC ¶ 30.)

While Plaintiff provides one example of alleged misconduct whereby a board member contributed to the encouragement of the nuisance by calling other residents (4AC¶

34), the 4AC is devoid of facts showing that such conduct was done with malice, fraud, and oppression. The 4AC fails to identify when such calls were made or how the notification of Plaintiff’s complaints related to the increased parking activity that exacerbated the nuisance. Nor does the 4AC allege how other Defendants ratified the conduct or consciously disregarded Plaintiff’s rights.

Thus, the court finds that Plaintiff failed to plead specific facts to show that Defendants acted with malice, fraud, or oppression in failing to abate a nuisance that stems from the noise of increased parking near Plaintiff's townhome.

(07/07/2025 Court Ruling.)

The 5AC

alleges that the Board of Directors was informed of the alleged nuisance and the health effects it would have on DeNoce (5AC ¶ 4), Knudsen as Vice President would direct and instruct various other residents to park next to DeNoce's home (id. ¶¶ 7, 19-22), and a list of the individuals involved (id. ¶ 20). As alleged, the allegations for punitive damages concern Knudsen only. No facts are alleged with specificity as to the other members mentioned by name in the 5AC. That is, as to the other members mentioned by name, DeNoce alleges only a general failure to abate the nuisance which does not show or allow an inference of malice, fraud, or oppression. Regarding Knudsen, the request for punitive damages rests on the following allegation:

With the full knowledge and consent of the

other directors, the Watergate Vice President Dana Knudsen has engaged in a course of conduct whereby she has choreographed the parking in the two parking strips outside Mr. DeNoce's home. She would direct and instruct various other residents

to park in the two strips on purpose. . .

Ms. Knudsen had another motivation to

annoy Mr. DeNoce. By increasing the parking noise, and residents parking next

to Mr. DeNoce's home, she wanted to create and promote a confrontation with

other residents and Mr. DeNoce, or instigate a rules violation by Mr. DeNoce.

Shortly after this action was filed, and previously, Ms. Knudsen arranged for

groups of people to park outside Mr. DeNoce's home in both parking strips.

These residents were regularly parking and departing under Mr. DeNoce's bedroom

window or against Mr. DeNoce's bedroom wall at all hours, late night and early

morning; 9, 10, 11:00 p.m., 2, 3, 4, 5, 6:00 a.m. They were instructed to park

there and harass Mr. DeNoce. Some of these people include: . . .

(5AC ¶¶

19-20.)

While

DeNoce has added names of individuals (e.g., Knudsen, Residents in paragraph

20), such allegations remain conclusory. A claim for punitive damages may not be based

on conclusory allegations of oppression, fraud or malice, but instead must be

based on factual allegations which support such a conclusion. (Smith v.

Superior Court (1992) 10 Cal.App.4th 1033, 1041-1042.)

Accordingly,

Defendants' Motion to Strike is granted as to punitive damages brought by DeNoce as an individual.

Defendants'

Motion to Strike to granted as to punitive damages brought by DeNoce as a trustee due to lack of an opposition.

For the

same reasons as stated above, leave to amend is not granted.

Conclusion

Defendants

Watergate Property Owners Association, Inc. and S.H. Chavin, Inc., D/B/A

Community Property Management's Demurrer is sustained.

Defendants

Watergate Property Owners Association, Inc. and S.H. Chavin, Inc., D/B/A

Community Property Management's Motion to Strike is granted.

Leave

to amend is denied.

Date: 08/26/2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court